

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Megan McCurdy	Team: Squad #13	CCRB Case #: 202208743	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/20/2022 5:32 PM, Tuesday, 12/20/2022 7:00 PM	Location of Incident: West 112th Street and Manhattan Avenue, and the 28th Precinct stationhouse	18 Mo. SOL 6/20/2024	Precinct: 28		
Date/Time CV Reported Wed, 12/21/2022 2:26 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 12/21/2022 2:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brianna Asselta	21674	959462	028 PCT
2. PO Sean Sloman	16483	962110	028 PCT
3. PO Delwar Shawon	25601	972421	028 PCT
4. PO Sohral Peerzada	22701	970064	028 PCT
5. SGT Syed Huda	01500	947088	QNS SAU
6. LT Mervin Bennett	00000	920019	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Carlo Chu	00000	941560	028 PCT
2. SGT SA John Yu	04653	940878	028 PCT
3. DTS Darrion Grant	07535	960614	028 PCT
4. PO Haris Zimonjic	26539	971281	028 PCT
5. PO Mohamed Islam	21611	959706	028 PCT
6. SGT Anthony Flores	04381	950419	028 PCT
7. LT Franklin Salinas	00000	940693	PCO

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Brianna Asselta	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta damaged § 87(2)(b) property.	A . Substantiated
B . PO Brianna Asselta	Discourtesy: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta spoke discourteously to § 87(2)(b)	B . Unfounded
C . PO Brianna Asselta	Discourtesy: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta acted discourteously toward § 87(2)(b)	C . Unfounded
D . PO Brianna Asselta	Off. Language: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta made remarks to § 87(2)(b) based upon ethnicity.	D . Unfounded
E . PO Brianna Asselta	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta threatened to arrest § 87(2)(b)	E . Within NYPD Guidelines
F . PO Sean Sloman	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Sean Sloman threatened to arrest § 87(2)(b)	F . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
G . PO Brianna Asselta	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta interfered with § 87(2)(b) use of a recording device.	G . Unfounded
H . PO Brianna Asselta	Off. Language: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	H . Unfounded
I . PO Brianna Asselta	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta improperly used her body-worn camera.	I . Substantiated
J . PO Sean Sloman	Abuse: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Sean Sloman improperly used his body-worn camera.	J . Substantiated
K . LT Mervin Bennett	Discourtesy: At the 28th Precinct stationhouse, Lieutenant Mervin Bennett spoke discourteously to § 87(2)(b)	K . Unable to Determine
L . PO Sohral Peerzada	Abuse: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada improperly used his body-worn camera.	L . Within NYPD Guidelines
M . PO Sohral Peerzada	Force: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada hit § 87(2)(b) against a vehicle.	M . Unfounded
N . PO Sohral Peerzada	Force: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada used physical force against § 87(2)(b)	N . Unfounded
O . PO Delwar Shawon	Force: At the 28th Precinct stationhouse, Police Officer Delwar Shawon used physical force against § 87(2)(b)	O . Unfounded
P . PO Sohral Peerzada	Abuse: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada did not obtain medical treatment for § 87(2)(b)	P . Unable to Determine
Q . PO Sohral Peerzada	Abuse: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada strip-searched § 87(2)(b)	Q . Unfounded
R . SGT Syed Huda	Off. Language: At the 28th Precinct stationhouse, Sergeant Syed Huda made remarks to § 87(2)(b) based upon ethnicity.	R . Unable to Determine
S . SGT Syed Huda	Discourtesy: At the 28th Precinct stationhouse, Sergeant Syed Huda spoke discourteously to § 87(2)(b)	S . Unable to Determine
T . PO Sean Sloman	Abuse: At the 28th Precinct stationhouse, Police Officer Sean Sloman made sexually suggestive gestures towards § 87(2)(b)	T . Unable to Determine
U . PO Sean Sloman	Discourtesy: At the 28th Precinct stationhouse, Police Officer Sean Sloman gestured discourteously toward § 87(2)(b)	U . Unable to Determine
V . SGT Syed Huda	Abuse: At the 28th Precinct stationhouse, Sergeant Syed Huda threatened to arrest § 87(2)(b)	V . Unfounded
W . PO Sohral Peerzada	Abuse: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada seized § 87(2)(b) property.	W . Unable to Determine
X . PO Sohral Peerzada	Abuse: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada issued an unlawful summons to § 87(2)(b)	X . Substantiated
Y . LT Mervin Bennett	Abuse: At the 28th Precinct stationhouse, Lieutenant Mervin Bennett issued an unlawful summons to § 87(2)(b)	Y . Substantiated

Case Summary

On December 21, 2022, § 87(2)(b) filed this complaint in-person at the CCRB (BR 01).

On December 20, 2022, at approximately 5:32 P.M., § 87(2)(b) was pulled over by Police Officers Brianna Asselta and Sean Sloman of the 28th Precinct at West 112th Street and Manhattan Avenue in Manhattan for running a red light and failing to signal. PO Asselta removed a puck-style antenna affixed to § 87(2)(b) trunk, which removed paint from the surrounding area (**Allegation A: Abuse of Authority – Property Damaged, substantiated**). PO Asselta allegedly said, “What the fuck is this?” and “That shit don’t mean nothing,” regarding § 87(2)(b) Detective’s Endowment Association (DEA) card (**Allegation B: Discourtesy – Word, unfounded**). PO Asselta allegedly said that § 87(2)(b) had “a lot of shit” in his vehicle and on his record (**Allegation B cont’d**). PO Asselta allegedly tossed the antenna onto § 87(2)(b) chest (**Allegation C: Discourtesy – Action, unfounded**). § 87(2)(b) told PO Asselta that he is Arab, and PO Asselta allegedly said, “Everyone claims to be Arab” (**Allegation B cont’d; Allegation D: Offensive Language – Ethnicity, unfounded**). PO Asselta and PO Solomon threatened to arrest § 87(2)(b) if he put the antenna back on his car (**Allegations E and F: Abuse of Authority – Threat of Arrest, within NYPD guidelines**). When § 87(2)(b) attempted to take photographs of the officers’ shields and vehicle, PO Asselta allegedly told § 87(2)(b) to put his cell phone down and said, “You cannot record nothing,” (**Allegation G: Abuse of Authority – Interference with Recording, unfounded**). When § 87(2)(b) walked back toward his trunk, PO Asselta allegedly said, “If you’re a man, put that shit back in there,” and that if § 87(2)(b) was “a man,” he would “drive off.” (**Allegation B cont’d; Allegation H: Offensive Language – Gender, unfounded**). PO Asselta and PO Sloman did not reactivate their body-worn cameras (BWCs) upon reapproaching § 87(2)(b) vehicle at the end of the vehicle stop (**Allegations I and J: Abuse of Authority – Improper Use of BWC, substantiated**).

Shortly thereafter, at approximately 7:00 P.M., § 87(2)(b) went to the 28th Precinct stationhouse, where Lieutenant Mervin Bennett of the 28th Precinct allegedly said, “You’re getting too close to get the fuck out of the precinct,” and “Get the fuck out of the precinct” to § 87(2)(b) (**Allegation K: Discourtesy – Word, unable to determine**). Police Officer Sohrul Peerzada of the 28th Precinct was not equipped with a BWC when he arrested § 87(2)(b) outside the stationhouse (**Allegation L: Abuse of Authority – Improper Use of BWC, within NYPD guidelines**). PO Peerzada allegedly slammed § 87(2)(b) against a parked vehicle (**Allegation M: Force – Hit Against an Inanimate Object, unfounded**), and PO Peerzada and Police Officer Delwar Shawon of the 28th Precinct allegedly dragged § 87(2)(b) into the stationhouse (**Allegations N and O: Force – Physical Force, unfounded**). § 87(2)(b) requested medical treatment for asthma, and PO Peerzada did not obtain medical treatment for § 87(2)(b) (**Allegation P: Abuse of Authority – Refusal to Obtain Medical Treatment, unable to determine**). PO Peerzada allegedly put his hand into § 87(2)(b) underwear to retrieve a drawstring aglet he felt during a frisk pursuant to arrest (**Allegation Q: Abuse of Authority – Strip-Searched, unfounded**). While § 87(2)(b) was lodged in a holding cell, Sergeant Syed Huda of the 28th Precinct allegedly said that he had “seen a lot of habibis” (**Allegation R and S: Offensive Language – Ethnicity, Discourtesy – Word; unable to determine**). PO Sloman allegedly blew kisses at § 87(2)(b) while § 87(2)(b) was lodged in the cell (**Allegations T and U: Abuse of Authority – Sexual Harassment, Discourtesy – Gesture; unable to determine**). While § 87(2)(b) was being released at the desk, Sgt. Huda allegedly said, “Do you want to get locked up?” (**Allegation V: Abuse of Authority – Threat of Arrest, unfounded**). § 87(2)(b) allegedly was in possession of PO Asselta’s and PO Sloman’s business cards at the time of his arrest, but the business cards were not included with his property when he was released by PO Peerzada (**Allegation W: Abuse of Authority – Seizure of Property,**

unable to determine). § 87(2)(b) was released with a summons for disorderly conduct (BR 02) (Allegation X and Y: Abuse of Authority – Unlawful Summons, substantiated).

The investigation received BWC footage recorded by PO Asselta (BR 03), PO Sloman (BR 04), PO Shawon (BR 05, 06), PO Peerzada (BR 07, 08), and four other officers assigned to the 28th Precinct, as well as dashboard camera footage from PO Asselta's and PO Sloman's assigned vehicle (BR 09). The investigation requested stationhouse footage regarding this incident and CCRB case #202301626 within the same request (BR 09), but only the stationhouse footage related to case #202301626 was provided (BR 10).

Findings and Recommendations

Allegation (A) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta damaged § 87(2)(b) property.

Allegation (B) Discourtesy: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta spoke discourteously to § 87(2)(b)

Allegation (C) Discourtesy: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta acted discourteously toward § 87(2)(b)

Allegation (D) Offensive Language: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta made remarks to § 87(2)(b) based upon ethnicity.

Allegation (H) Offensive Language: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

The following details are undisputed: On December 20, 2022, at approximately 5:32 P.M., PO Asselta and PO Sloman pulled over § 87(2)(b) after he turned left without signaling. § 87(2)(b) vehicle was a silver 2011 Ford Fusion sedan with a custom license plate that read, "§ 87(2)(b)" and a black, puck-style antenna magnetically affixed to the top of the trunk. All of § 87(2)(b) windows had tints that appeared visibly darker than the legal limit, as § 87(2)(b) stated that the tints were almost completely dark (BR 23). PO Asselta approached § 87(2)(b) driver's side window, and PO Sloman approached § 87(2)(b) front passenger window. PO Asselta said that she stopped § 87(2)(b) because he made a right on red and failed to signal. § 87(2)(b) explained that his rear left turn signal was broken and that he had just recently bought a replacement bulb, which he showed to PO Asselta. § 87(2)(b) also handed PO Asselta a Detective's Endowment Association (DEA) card. PO Asselta walked to the rear of § 87(2)(b) vehicle, removed § 87(2)(b) puck-style antenna from the trunk lid, and re-approached § 87(2)(b) window. PO Asselta asked § 87(2)(b) about the purpose of the antenna. § 87(2)(b) originally said that it came with his car, then later said that he bought it on Amazon because the 32nd Precinct does not like him. PO Asselta told § 87(2)(b) that his vehicle looked like a police vehicle.

§ 87(2)(b) (BR 23, 12) stated that after he gave PO Asselta the DEA card, PO Asselta said, "What the fuck is this?" and, "That shit don't mean nothing." § 87(2)(b) told PO Asselta that he was Arab, and PO Asselta said, "Everyone claims to be Arab." § 87(2)(b) told PO Asselta that she had been holding him for a long time, and PO Asselta said it was because § 87(2)(b) had "a lot of shit" in his vehicle. PO Asselta attempted to remove the antenna by grabbing it with both hands and sliding it back and forth, which caused the paint on § 87(2)(b) trunk to scratch around where the antenna was affixed. She eventually removed the antenna by pulling it straight up. PO Asselta said she removed the antenna because § 87(2)(b) was trying to impersonate a police officer, and she tossed the antenna onto § 87(2)(b) chest. § 87(2)(b) stated to the investigation that his vehicle

does resemble an unmarked police vehicle. After PO Asselta removed the antenna, she said, “You have a lot of shit on your record.” § 87(2)(b) ended up paying \$500 to get his trunk repainted. Toward the end of the interaction, after PO Asselta and PO Sloman walked away for the final time, § 87(2)(b) exited his vehicle. When he walked back toward his trunk, PO Asselta said, “If you a man, put that shit back in there,” and that if § 87(2)(b) was “a man,” he would “drive off.”

Per PO Asselta’s BWC footage (**BR 03**), at runtime 03:07, § 87(2)(b) says, “I’m Arab by the way,” and PO Asselta does not respond to this comment. PO Asselta does not mention § 87(2)(b) antenna prior to removing it from § 87(2)(b) vehicle. A brightened screenshot of PO Asselta’s BWC footage at runtime 05:33 (**BR 13**) does not capture a black dot in front of the antenna. At runtime 05:34 of the BWC footage, PO Asselta uses one hand to pull the antenna toward the back edge of the vehicle and remove it. The antenna makes a scraping sound against the trunk of the vehicle as it is being pulled. At 05:37, a black dot is visible in the path where PO Asselta pulled the antenna, and circular scratches are visible where the antenna was originally placed. PO Asselta’s BWC footage, which begins at the beginning of the vehicle stop and ends when PO Asselta and PO Sloman deactivate their BWCs upon initially beginning to walk away from § 87(2)(b) vehicle, does not capture PO Asselta using any profanity when speaking with § 87(2)(b) or making any reference to § 87(2)(b) ethnicity.

Per dashboard camera footage (**BR 09**), at runtime 15:45, § 87(2)(b) exits his vehicle. At 16:08, the officers drive away. At no point once the officers walk away from § 87(2)(b) vehicle for the final time does PO Asselta use profanity or refer to § 87(2)(b) gender or ethnicity.

PO Asselta (**BR 14**) stated that upon initially approaching § 87(2)(b) vehicle, she noticed the antenna on § 87(2)(b) trunk, his dark tints, and that the vehicle was a Ford Fusion, which raised PO Asselta’s suspicion “in the direction of the possible police impersonation.” During PO Asselta’s interaction with § 87(2)(b) he did not display any words or symbols that purported to identify him as a police officer or his vehicle as a police vehicle. PO Asselta pulled the antenna off the vehicle because she knew from previous experiences with similar antennas that they were magnetic. Police vehicles have similar antennas that are permanently attached and are usually centered on the trunk. As a safety precaution, PO Asselta removed the antenna herself instead of having § 87(2)(b) exit his vehicle to remove it. After PO Asselta removed the antenna, she saw circular scratches around where the antenna had been, but they appeared to have been there previously. She did not recall whether any paint was scraped off in the area where the antenna had been. PO Asselta did not know how the black spot in front of where the antenna was previously placed got there, but she did not believe it was caused by her removal of the antenna, as she would have known if she damaged something to that extent. § 87(2)(b) could have been arrested for impersonating a police officer because: 1.) his vehicle resembled an unmarked police vehicle insofar as it was a Ford Fusion with dark tints on the windows and an antenna affixed to the trunk that resembled the kind of antennas affixed to police vehicles and was placed in the same spot where such an antenna would be on a police vehicle, and 2.) because § 87(2)(b) said he bought the antenna from Amazon because the 32nd Precinct does not like him, thereby insinuating that he was using the antenna to avoid being stopped because it makes his vehicle look like an unmarked police vehicle. While these factors would have allowed PO Asselta to arrest § 87(2)(b) she chose to use her discretion because § 87(2)(b) was not “overly pushing the issue of yes, I am a police officer.” § 87(2)(b) did not explicitly say he was a police officer, and there were no other indications of police impersonation. While having the antenna on the back of his vehicle was abnormal, PO Asselta did not know if having the antenna affixed to the back of his vehicle was in and of itself was against the law. PO Asselta use the word “fuck” or refer to his perceived gender at any point, and she did not recall saying that § 87(2)(b) had “a lot of shit” in his vehicle.

PO Sloman (BR 15) stated that he did not hear much of PO Asselta's and § 87(2)(b) initial conversation because he stood on the opposite side of § 87(2)(b) vehicle (the passenger side) and passing traffic made it difficult to hear. PO Sloman heard some discussion about the antenna but did not know the details of that conversation. PO Sloman did not know if PO Asselta said, "What the fuck is this?" in response to § 87(2)(b) giving her a DEA card. PO Sloman did not hear PO Asselta use the word "shit," or tell § 87(2)(b) that he had "a lot of shit" in his vehicle. PO Sloman stated that to his knowledge, there was not probable cause to arrest § 87(2)(b) for police impersonation, and that he did not know the legality of § 87(2)(b) antenna.

Per *Onderdonk v. State*, 170 Misc. 2d 155 (BR 17), officers may damage property when it is reasonably necessary to carry out their duties.

Per New York Penal Law § 190.26 (BR 18), "A person is guilty of criminal impersonation in the first degree when he: (1) Pretends to be a police officer...or wears or displays without authority, any uniform, badge or other insignia or facsimile thereof, by which such police officer...is lawfully distinguished or expresses by his or her words or actions that he or she is acting with the approval or authority of any police department...and (2) So acts with intent to induce another to submit to such pretended official authority or otherwise to act in reliance upon said pretense and in the course of such pretense commits or attempts to commit a felony."

Per New York Penal Law § 190.25 (BR 19), "A person is guilty of criminal impersonation in the second degree when he... (2) Pretends to be a representative of some person or organization and does an act in such pretended capacity with intent to obtain a benefit or to injure or defraud another; or (3)(a) Pretends to be a public servant, or wears or displays without authority any uniform, badge, insignia or facsimile thereof by which such public servant is lawfully distinguished, or falsely expresses by his words or actions that he is a public servant or is acting with approval or authority of a public agency or department; and (b) so acts with intent to induce another to submit to such pretended official authority, to solicit funds or to otherwise cause another to act in reliance upon that pretense."

Given that the black mark on § 87(2)(b) trunk in front of the antenna's location was not visible in BWC footage prior to PO Asselta removing the antenna, and a very distinguishable scraping sound was captured as she removed it, § 87(2)(g)

§ 87(2)(b) it is undisputed that § 87(2)(b) never said that he was a police officer, wore a police uniform, or displayed any badge or insignia that lawfully distinguishes a police officer from other individuals.

§ 87(2)(g)

While § 87(2)(b) initially told PO Asselta that the antenna came with the vehicle, and then said that he bought it from Amazon because the 32nd Precinct does not like him, he did not say this until PO Asselta had already removed the antenna. PO Asselta did not mention or ask § 87(2)(b) about the antenna until after she removed it. § 87(2)(g)

It is therefore recommended that **Allegation A** be substantiated.

§ 87(2)(b) stated that during his initial conversation with PO Asselta, prior to the moment she deactivated her BWC, she directed multiple statements towards him that included profanities (i.e., “fuck” and “shit”), tossed his antenna onto his chest, and said, “Everyone claims to be Arab,” in response to § 87(2)(b) saying he is Arab. § 87(2)(b) also stated that as he walked back toward his trunk, PO Asselta said that if he was “a man,” he would “put that shit back in there” and “drive off.” § 87(2)(g)

PO Asselta’s BWC footage records from the very beginning of the interaction and does not capture PO Asselta using any profanity or saying, “Everyone claims to be Arab,” and shows that PO Asselta handed § 87(2)(b) the antenna. Dashboard camera footage captures the entire conversation between the officers and § 87(2)(b) after he exits his vehicle and does not capture any profane statements or references to § 87(2)(b) perceived gender. Therefore, it is recommended that **Allegations B, C, D and H be unfounded.**

Allegation (E) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta threatened to arrest § 87(2)(b)

Allegation (F) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Sean Sloman threatened to arrest § 87(2)(b)

Allegation (G) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta interfered with § 87(2)(b) use of a recording device.

Allegation (I) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Brianna Asselta improperly used her body-worn camera.

Allegation (J) Abuse of Authority: At West 112th Street and Manhattan Avenue in Manhattan, Police Officer Sean Sloman improperly used his body-worn camera.

The following details are undisputed: At the end of the interaction, PO Asselta and PO Sloman deactivated their BWCs and began to walk away from § 87(2)(b) vehicle, but then returned and interacted with § 87(2)(b) for approximately three more minutes. Once the officers walked away for the last time, § 87(2)(b) exited his vehicle and appeared to take photographs or video recordings of the officers’ vehicle. PO Asselta and PO Sloman left without issuing § 87(2)(b) any summonses. § 87(2)(b) had an active warrant on December 20, 2022, as § 87(2)(b) (BR 23) stated he had active warrants on this date, and PO Peerzada stated both in his CCRB interview (BR 24) and in PO Shawon’s BWC footage (BR 05), at runtimes 10:46 and 12:21, that § 87(2)(b) had an active bench warrant, which PO Peerzada stated was subsequently vacated.

§ 87(2)(b) (BR 23, 12) stated that toward the end of the interaction, PO Asselta began to walk away, then turned around and told him that she was giving him a break. § 87(2)(b) exited his vehicle to attempt to photograph the officers’ shields and the license plate of the officers’ vehicle. He was not attempting to put the antenna back on the car. PO Asselta repeatedly told § 87(2)(b) to put his phone down and said, “You cannot record nothing,” and, “You put that shit back on, you’re gonna get locked up. And if I ever see you on this block after I leave, I’m gonna lock you up.” § 87(2)(b) walked to the back of his vehicle and reattached the antenna onto his trunk, and PO Asselta said she would arrest him if he drove off. PO Asselta told § 87(2)(b) approximately six to eight times that if he put the antenna back on his car, he would be arrested.

Per PO Asselta’s BWC footage (BR 03), at runtime 02:24, § 87(2)(b) hands PO Asselta his driver’s license. At 03:53 (5:35 P.M.), PO Asselta performs a warrant check for § 87(2)(b) by name on her department cell phone. Between 04:25 and 05:30, PO Asselta appears to read the results from the warrant check. Between 07:56 and 08:23, PO Asselta appears to continue to read the warrant check results. At 08:30, PO Asselta performs a warrant check for § 87(2)(b) by

driver's license number. At 08:48, PO Asselta says that § 87(2)(b) has "been in trouble quite a few times in the past," and that § 87(2)(b) has been arrested "quite a few times." At 09:00 (5:40 P.M.), PO Asselta appears to briefly review the warrant check results.

Per dashboard camera footage (BR 09), at runtime 13:31, PO Asselta and PO Sloman deactivate their BWCs and begin to walk away from § 87(2)(b) vehicle. At 13:33, PO Asselta appears to say something to § 87(2)(b) and continues to talk to him at his window. At 13:43, PO Sloman re-approaches § 87(2)(b) vehicle on the passenger side. At 15:33, PO Asselta and PO Sloman walk toward their vehicle. At 15:35 (5:46 P.M.), PO Asselta turns back toward § 87(2)(b) and says something unintelligible that begins with, "I see you again...." § 87(2)(b) response is unintelligible. At 15:40, PO Asselta says, "Put it back on the car, you're going to jail for police impersonation. Put it on right now, too." § 87(2)(b) exits his vehicle and appears to be recording on his phone. At 15:47, PO Sloman says, "You put that on the car right now, you're going back to the precinct." PO Asselta simultaneously says, "You put that on the car, you're going to jail." At 16:05, PO Sloman says, "Yeah, no problem. Record all you want, bro," and then the officers begin driving away. At no point does PO Asselta tell § 87(2)(b) that he cannot record.

PO Asselta (BR 14) stated that after deciding not to issue § 87(2)(b) any summonses, she deactivated her BWC, said goodbye, turned around, and walked away. She deactivated her BWC when she considered the vehicle stop to be over. PO Asselta acknowledged having further conversation with § 87(2)(b) after deactivating her BWC. PO Asselta did not recall details of the conversation, but she noted that § 87(2)(b) asked a question as she was walking away, and she did not want to be rude and ignore him. PO Asselta did not reactivate her BWC because her investigation into § 87(2)(b) was over; she was not going to write him a summons or arrest him. PO Asselta did not recall anything happening during that conversation that would have required her to reactivate her BWC. PO Asselta did not believe the interaction she had with § 87(2)(b) after her BWC was deactivated was adversarial. PO Asselta's demeanor during this interaction was calm, respectful, and patient, and she answered § 87(2)(b) questions. The vehicle stop was no longer in effect during this further conversation, as § 87(2)(b) was free to leave. Other than police impersonation, § 87(2)(b) could have been arrested for running a red light, failing to signal, and having dark tints. PO Asselta acknowledged that the dashboard camera footage captures her saying, "I'll arrest you for police impersonation." She did not recall using any profanity during this interaction. PO Asselta did not recall saying, "And if I ever see you on this block after I leave, I'm gonna lock you up." PO Asselta said, "Put it back on the car, you're going to jail for police impersonation," and, "You put that on the car, you're going to jail," because § 87(2)(b) exited his vehicle and seemed like he wanted to put the antenna back on his vehicle. § 87(2)(b) did take photographs of the police vehicle upon exiting his vehicle.

PO Sloman (BR 15) stated that he walked away from § 87(2)(b) vehicle near the end of the incident and deactivated his BWC because he believed the vehicle stop was over. After reviewing the dashboard camera footage, PO Sloman saw that PO Asselta continued to converse with § 87(2)(b). PO Sloman did not reactivate his BWC after returning to § 87(2)(b) vehicle because he did not believe the interaction would last for another three minutes; he thought PO Asselta just wanted to let § 87(2)(b) know something or explain something. PO Sloman did not recall the conversation that occurred with § 87(2)(b) after he deactivated his BWC. PO Sloman acknowledged saying, "You put that on the car right now, you're going back to the precinct." He said this because PO Asselta had previously told § 87(2)(b) not to put the antenna back onto his vehicle and § 87(2)(b) was arguing with her about it, he did not want to undermine PO Asselta, and he did not know the legality of the antenna. In making this statement, PO Sloman meant that § 87(2)(b) would need to come back to the stationhouse so the officers could determine the legality of the antenna being affixed to his vehicle, not that § 87(2)(b) would be arrested. To PO

Sloman's knowledge, there was no probable cause to arrest § 87(2)(b) for police impersonation.

Per warrant audit results (BR 33), PO Asselta performed four warrant checks for § 87(2)(b) (two by name, one by driver's license number, and one by license plate number) prior to 5:46 P.M., when she said, "Put it back on the car, you're going to jail for police impersonation."

Per NY CLS Criminal Procedure Law § 140.10 (BR 36), "a police officer may arrest a person for any offense when he or she has reasonable cause to believe that such person has committed such offense in his or her presence," and generally within the "geographical area of such police officer's employment."

Per NY CLS Vehicle & Traffic Law § 155 (BR 37), "For the purposes of arrest without a warrant, pursuant to article one hundred forty of the criminal procedure law, a traffic infraction shall be deemed an offense."

Per NY CLS Criminal Procedure Law § 150.20(1) (BR 35), "Whenever a police officer is authorized pursuant to section 140.10 of this title to arrest a person without a warrant for an offense," the officer shall "instead issue to and serve upon such person an appearance ticket," Among other exceptions to this rule, "An officer is not required to issue an appearance ticket if the person has one or more outstanding local criminal court or superior court warrants."

Dashboard camera footage captures PO Asselta saying, "Put it back on the car, you're going to jail for police impersonation," and "You put that on the car, you're going to jail," and captures PO Sloman saying, "You put that on the car right now, you're going back to the precinct." § 87(2)(b) acknowledged that he did not have a working rear left turn signal, that his tints were darker than the legal limit, and that he had an active warrant at the time of the incident. § 87(2)(g)

§ 87(2)(b)

It is therefore recommended that **Allegations E and F** be closed as **within NYPD guidelines**.

§ 87(2)(b) stated that when he attempted to take photographs of the officers' shields and vehicle, PO Asselta told him to put his cell phone down multiple times and said, "You cannot record nothing." The dashboard camera footage shows that PO Asselta did not make any such statements when § 87(2)(b) attempted to take photographs of the officers' vehicle. It is therefore recommended that **Allegation G** be **unfounded**.

Per NYPD Patrol Guide Procedure 212-123 (BR 22), officers are required to "record continuously, until investigative, enforcement, or other police action is concluded." A police action is "any police service, as well as law enforcement or investigative activity conducted in furtherance of official duties," which includes vehicle stops. Officers are also required to "record any interactions that escalate to become adversarial."

While PO Asselta and PO Sloman may have believed that the vehicle stop was over at the time that they deactivated their BWCs, which is corroborated by dashboard camera footage showing that both officers began to walk back toward their vehicle, both officers were required to reactivate their BWCs once they walked back to § 87(2)(b) vehicle and continued to speak with him.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations I and J** be substantiated.

Allegation (K) Discourtesy: At the 28th Precinct stationhouse, Lieutenant Mervin Bennett spoke discourteously to § 87(2)(b)

Allegation (L) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada improperly used his body-worn camera.

Allegation (M) Force: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada hit § 87(2)(b) against a vehicle.

Allegation (N) Force: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada used physical force against § 87(2)(b)

Allegation (O) Force: At the 28th Precinct stationhouse, Police Officer Delwar Shawon used physical force against § 87(2)(b)

Allegation (X) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada issued an unlawful summons to § 87(2)(b)

Allegation (Y) Abuse of Authority: At the 28th Precinct stationhouse, Lieutenant Mervin Bennett issued an unlawful summons to § 87(2)(b)

The following details are undisputed: After the vehicle stop, § 87(2)(b) called 911 and requested a supervisor. Lieutenant Carlo Chu of the 28th Precinct responded and told § 87(2)(b) to go to the 28th Precinct stationhouse and wait for him to discuss the damage to § 87(2)(b) vehicle. § 87(2)(b) acknowledged using multiple profanities (e.g., “suck my dick,” “fuck,” “cocksuckers”) and racial slurs (e.g., “N-words”) toward officers while he waited for Lt. Chu inside the stationhouse, and that he verbally refused to leave the stationhouse after officers ordered him to leave (**BR 23, 32**). § 87(2)(b) was arrested and released with a summons for disorderly conduct.

§ 87(2)(b) (**BR 23, 12**) stated that Lieutenant Mervin Bennett of the 28th Precinct told him that he needed to have respect in his precinct and, “You’re getting too close to get the fuck out of the precinct.” § 87(2)(b) asked why Lt. Bennett was talking to him like that, and Lt. Bennett said § 87(2)(b) heard what he said. § 87(2)(b) said he “did not hear shit,” and Lt. Bennett said, “Get the fuck out of the precinct.” § 87(2)(b) said he was not going to leave, and Lt. Bennett again told him to “Get the fuck out the precinct.” Approximately six officers then ran toward § 87(2)(b) so § 87(2)(b) ran out of the stationhouse. PO Peerzada caught up to § 87(2)(b) slammed him against a parked car, and pinned his face against one of the car’s windows. PO Peerzada and PO Shawon handcuffed § 87(2)(b) and dragged him into the stationhouse.

Per PO Shawon’s first BWC video (**BR 05**), at runtime 00:36, there are no civilians in the waiting area of the stationhouse, and Lt. Bennett is captured standing behind the desk. PO Peerzada walks out of the area behind the desk without a Taser. At 00:39, PO Peerzada appears to speak with PO Shawon briefly by the desk, then PO Shawon and another officer exit the stationhouse. At 00:46, § 87(2)(b) is standing on the sidewalk outside the stationhouse and begins running away as PO Shawon exits the stationhouse. PO Peerzada chases § 87(2)(b) across the street, and PO Shawon runs after him. At 00:59, PO Peerzada is handcuffing § 87(2)(b) as § 87(2)(b) stands on the sidewalk across the street from the stationhouse. § 87(2)(b) is not against any vehicle. At 01:11, PO Peerzada and PO Shawon hold onto § 87(2)(b) arms as they escort him back inside. § 87(2)(b) appears to walk with the officers, who do not appear to use any force to bring § 87(2)(b) to the stationhouse.

Per PO Peerzada’s first BWC video (**BR 07**), at runtime 00:00, PO Shawon brings PO Peerzada’s BWC out from the back of the stationhouse, activates it, and sets it on the desk as PO Peerzada is

standing with § 87(2)(b) in front of the desk area.

PO Peerzada (BR 24) stated that his scheduled tour for December 20, 2022 was 11:00 A.M. to 7:35 P.M. He was preparing to end his tour and putting his gear away when he heard § 87(2)(b) screaming profanities and racial slurs at Lt. Bennett. PO Peerzada was not paying a lot of attention to the situation, as he was trying to leave work and similar situations happen frequently. Officers told § 87(2)(b) to leave the stationhouse multiple times, and Lt. Bennett ordered the officers around him to arrest § 87(2)(b) for disorderly conduct. PO Peerzada looked around and realized he was the only officer in the vicinity. At this point, PO Peerzada had already docked his BWC and was in the process of putting away his Taser, so he did not have time to grab his BWC before pursuing § 87(2)(b). The BWC docking station is down a narrow hallway behind the desk, so it would have taken PO Peerzada an extra 30 seconds to grab his BWC and come back. PO Peerzada did not hear Lt. Bennett, or any officer say, “You’re getting too close to get the fuck out of the precinct,” “Get the fuck out of the precinct,” or otherwise use profanity. The only thing PO Peerzada heard Lt. Bennett say was to arrest § 87(2)(b). PO Peerzada moved toward § 87(2)(b) and said, “Sir, you’re under arrest.” § 87(2)(b) then turned around and ran out of the stationhouse and across the street, and PO Peerzada ran after § 87(2)(b). PO Peerzada grabbed § 87(2)(b) arm, turned him around, and handcuffed him with no resistance or real use of force. PO Peerzada did not pin § 87(2)(b) against a car, and § 87(2)(b) was never against or touching a car. PO Peerzada and PO Shawon escorted § 87(2)(b) into the stationhouse to charge him with disorderly conduct. No officer dragged § 87(2)(b) into the stationhouse.

Lt. Bennett (BR 25) did not recall this incident.

Sgt. Huda (BR 26) was not aware of the incident that occurred in the stationhouse that led to § 87(2)(b) arrest and did not hear any officer tell § 87(2)(b) to “get the fuck out of the precinct.”

Per the 28th Precinct Tour Two Roll Call (BR 30), PO Peerzada was scheduled to work as a public safety officer at 11:00 A.M. on December 20, 2022. PO Peerzada’s memo book (BR 31) does not list his tour start and end times, but it indicates that he was working as a public safety officer.

§ 87(2)(g)

Therefore, it is recommended that **Allegation K** be closed as **unable to determine**.

Per NYPD Patrol Guide Procedure 212-123 (BR 22), officers are required to “activate BWC as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place,” and to “insert BWC into docking station at station house to upload video and recharge battery at completion of tour.”

PO Peerzada stated that when he was preparing to end his tour at 7:35 P.M., had already docked his BWC and was in the process of putting away his Taser when he heard the dispute between § 87(2)(b) and Lt. Bennett. Given that § 87(2)(b) was arrested at approximately 7:00 P.M., that PO Peerzada had already been working for eight hours per the Roll Call, and that PO Peerzada was not equipped with a Taser immediately prior to chasing § 87(2)(b) per PO Shawon’s BWC footage, the investigation determined by a preponderance of the evidence that PO Peerzada had already docked his BWC at the end of his tour as required by NYPD Patrol Guide Procedure 212-123.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **within NYPD guidelines**.

BWC footage shows that PO Peerzada did not place § 87(2)(b) against a vehicle when apprehending him outside the stationhouse, but rather handcuffed him with no resistance. BWC footage also shows that § 87(2)(b) independently walked with PO Peerzada and PO Shawon as they escorted him into the stationhouse, and that neither officer dragged § 87(2)(b) into the stationhouse. It is therefore recommended that **Allegation M, N, and O** be **unfounded**.

PO Peerzada issued § 87(2)(b) a summons (**BR 02**) for violating New York State Penal Law § 240.20(3). PO Peerzada wrote that § 87(2)(b) “did continuously yell profanities, racial slurs, and threats of physical violence after entering precinct and being repeatedly asked to disperse from location and refusing.” § 87(2)(b) also said, “Suck my dick.” While the summons was approved, it does not indicate who it was approved by.

Under New York State Penal Law § 240.20 (BR 38), “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: (1) he engages in fighting or in violent, tumultuous or threatening behavior; or (2) he makes unreasonable noise; or (3) in a public place, he uses abusive or obscene language, or makes an obscene gesture; or (4) without lawful authority, he disturbs any lawful assembly or meeting of persons; or (5) he obstructs vehicular or pedestrian traffic; or (6) he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or (7) he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.”

People v. Baker, 20 N.Y.3d 354 (2013) (**BR 39**) citing *People v. Weaver*, 16 N.Y.3d 123 (2011), states, “[C]ritical to a charge of disorderly conduct is a finding that defendant’s disruptive statements and behavior were of a public rather than an individual dimension. This requirement stems from the mens rea component, which requires proof of an intent to threaten public safety, peace or order (or the reckless creation of such a risk). Thus, ‘a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem’.... To determine whether the record supports an inference that the requisite mens rea was present, we have employed a contextual analysis that turns on consideration of many factors, including ‘the time and place of the episode under scrutiny; the nature and character of the conflict; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances.’” Additionally, “Isolated statements using coarse language to criticize the actions of a police officer, unaccompanied by provocative acts or other aggravating circumstances, will rarely afford a sufficient basis to infer the presence of the ‘public harm’ mens rea necessary to support a disorderly conduct charge under *Penal Law § 240.20(3)*.”

PO Peerzada issued § 87(2)(b) a disorderly conduct summons for violating Penal Law § 240.20(3), which requires § 87(2)(b) to have created or recklessly risked creating public inconvenience, annoyance or alarm by using abusive or obscene language or gestures. § 87(2)(g)

BWC footage shows that there were no civilians in the stationhouse right before PO Peerzada pursued § 87(2)(b) § 87(2)(g)

§ 87(2)(g) it is undisputed that § 87(2)(b) did not comply with lawful orders to leave the stationhouse, § 87(2)(g). Therefore, it is recommended that **Allegation X** be substantiated.

While Lt. Bennett did not recall this incident, by both § 87(2)(b) and PO Peerzada's accounts of the incident in the stationhouse, Lt. Bennett was directly involved in this incident with § 87(2)(b). PO Peerzada stated that Lt. Bennett specifically directed him to arrest § 87(2)(b) for disorderly conduct, § 87(2)(g). Therefore, it is recommended that **Allegation Y** be substantiated.

Allegation (P) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada did not obtain medical treatment for § 87(2)(b).

Allegation (Q) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada strip-searched § 87(2)(b).

Allegation (R) Offensive Language: At the 28th Precinct stationhouse, Sergeant Syed Huda made remarks to § 87(2)(b) based upon ethnicity.

Allegation (S) Discourtesy: At the 28th Precinct stationhouse, Sergeant Syed Huda spoke discourteously to § 87(2)(b).

Allegation (T) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sean Sloman made sexually suggestive gestures towards § 87(2)(b).

Allegation (U) Discourtesy: At the 28th Precinct stationhouse, Police Officer Sean Sloman gestured discourteously toward § 87(2)(b).

Allegation (V) Abuse of Authority: At the 28th Precinct stationhouse, Sergeant Syed Huda threatened to arrest § 87(2)(b).

Allegation (W) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Sohral Peerzada seized § 87(2)(b) property.

The following details are undisputed: After he was handcuffed, while in front of the desk, § 87(2)(b) requested medical attention, but he was never provided medical attention. At approximately 7:50 P.M., PO Peerzada issued § 87(2)(b) a summons for disorderly conduct (**BR 02**) and released him from the stationhouse.

§ 87(2)(b) (**BR 23, 12**) stated that PO Peerzada took everything out of § 87(2)(b) pockets at the desk, including PO Asselta's and PO Sloman's business cards. § 87(2)(b) said he needed to go to a hospital, and an officer asked why. After taking § 87(2)(b) away from the desk, PO Peerzada ran both of his open palms up the length of § 87(2)(b) right leg and groin area over the closing, and he felt the aglet the drawstring of § 87(2)(b) pants in his underwear. During this frisk, § 87(2)(b) asked for an ambulance. PO Peerzada said, "Okay. I got you." PO Peerzada cut the drawstrings off § 87(2)(b) pants and approached the desk sergeant, Sgt. Huda. PO Peerzada told Sgt. Huda that he needed to take § 87(2)(b) to a special room, and Sgt. Huda told PO Peerzada to do the search by the fingerprinting computer, which is next to the holding cells. PO Peerzada walked with § 87(2)(b) to the area next to the fingerprinting computer, told § 87(2)(b) to remove his jacket, and said he saw something in § 87(2)(b) underwear. PO Peerzada then put one hand into § 87(2)(b) underwear and pulled out the aglet. PO Peerzada put § 87(2)(b) into a holding

cell near the desk. While § 87(2)(b) was in the holding cell, Sgt. Huda approached the holding cell at one point and asked if § 87(2)(b) was Muslim. § 87(2)(b) said he was Muslim, and Sgt. Huda said he had “seen a lot of habibis,” and they do not act like § 87(2)(b) (“Habibi” is an Arabic term of endearment.) PO Sloman, who was standing in front of the desk, started blowing kisses at § 87(2)(b) by placing his flat palm against his mouth, bending his arm, taking his flat palm away from his mouth at a slight upward angle, and making kissing sounds. He did this approximately six times. § 87(2)(b) was eventually moved to another cell, where the officers at the desk were not able to hear him yelling. While in the rear holding cell, § 87(2)(b) yelled, “I need a fucking ambulance.” No officers responded to him. At some point, § 87(2)(b) told PO Peerzada and Lieutenant Franklin Salinas of the 28th Precinct, “I want to go to the ambulance. I’m panicking. I can’t breathe. This lady threatened me, and she’s trying to lock me up.” § 87(2)(b) was told an ambulance would come. After an hour, PO Peerzada and Lt. Salinas approached § 87(2)(b) holding cell. § 87(2)(b) asked where his ambulance was, and an officer said § 87(2)(b) would need to go to the hospital on his own. PO Peerzada and Lt. Salinas removed § 87(2)(b) from the holding cell and escorted him to the desk. § 87(2)(b) requested an ambulance three times inside the stationhouse. Sgt. Huda said § 87(2)(b) could be released and that the officers could take § 87(2)(b) out of the stationhouse. § 87(2)(b) said something to the effect of, “Bro.” Sgt. Huda said, “Do you wanna get locked up?” § 87(2)(b) was issued a summons for disorderly conduct and released without medical attention. When § 87(2)(b) was looking through his property at a later point, he realized that PO Asselta’s and PO Sloman’s business cards were not with the property he had entered the stationhouse with.

The following BWC footage is presented in chronological order for the purpose of clarity.

Per dashboard camera footage from the vehicle stop (**BR 09**), at runtime 14:02, PO Asselta appears to write something down. At 14:30, she appears to hand something to § 87(2)(b)

Per PO Shawon’s first BWC video (**BR 05**), at runtime 02:58, while PO Shawon’s BWC is on the front desk and facing § 87(2)(b) PO Shawon brings a yellow envelope, and the officers start putting § 87(2)(b) property into the envelope (e.g., keys, a hat, a handful of indistinguishable items). At 03:30, PO Peerzada removes multiple rectangular cards from § 87(2)(b) right pants pocket. One appears to be a driver’s license, but it is not clear what the other cards are. At 05:16, § 87(2)(b) makes a somewhat unintelligible comment that ends with “ambulance.” At 07:04, § 87(2)(b) says to Police Officer Mohamed Islam of the 28th Precinct, while PO Peerzada and PO Shawon stand nearby, that he has been asking for an ambulance. He says he forgot his asthma pump and feels like he is going to throw up. PO Islam says Sgt. Huda will take care of him and points behind the desk. At 08:10, PO Peerzada brings § 87(2)(b) property to the desk, and PO Shawon escorts § 87(2)(b) to the desk. At 09:19, as Sgt. Huda is talking to § 87(2)(b) blows a kiss at an officer behind the desk and says, “I love you.” Given the angle of the BWC, the officers behind the desk are not visible. However, PO Shawon’s BWC does not capture any officer within the frame blowing kisses at § 87(2)(b) At 12:43, PO Peerzada escorts § 87(2)(b) away as PO Shawon takes his gun behind the desk. Lt. Bennett and Sgt. Huda are visible behind the desk. PO Sloman moves in and out of the frame throughout this video. At no point in this footage is any officer seen blowing a kiss at § 87(2)(b)

Per PO Peerzada’s first BWC video (**BR 07**), at runtime 07:24, PO Peerzada escorts § 87(2)(b) into the holding cell and fingerprinting area near the desk. At 08:30, PO Peerzada tells § 87(2)(b) to take his jacket off, which he does. At 10:52, PO Peerzada cuts the two strings off of § 87(2)(b) sweatpants. The gray bottoms § 87(2)(b) has underneath his sweatpants do not have drawstrings.

Per PO Shawon's first BWC video (**BR 05**), at runtime 16:47, PO Peerzada frisks § 87(2)(b) waistband, pants, and hoodie in the cell area. PO Peerzada also searches § 87(2)(b) hoodie pocket and hood. At 17:15, § 87(2)(b) says, "You want to take my clothes off?" PO Peerzada says, "Nah. You're good, bro." PO Peerzada opens the holding cell door for § 87(2)(b) and § 87(2)(b) walks in. PO Peerzada does not reach into § 87(2)(b) underwear or discuss feeling any object in § 87(2)(b) pants, gray bottoms, or underwear. PO Peerzada does not reference the aglet of § 87(2)(b) drawstrings at any point.

Per PO Peerzada's second BWC video (**BR 08**), at runtime 00:00, PO Peerzada approaches § 87(2)(b) who is now lodged in one of the rear holding cells, and appears to speak briefly with him (no audio). At 00:06, § 87(2)(b) shakes his head as if to say, "No." At 00:22, PO Peerzada escorts § 87(2)(b) to the desk. At 00:53, Sgt. Huda looks at PO Peerzada from behind the desk and appears to gesture for PO Peerzada to come up to the desk. There is no audio at this moment, but Sgt. Huda does not appear to speak to § 87(2)(b) or vice-versa § 87(2)(b) lips remain closed). At 00:59, PO Peerzada activates his BWC and places it on the desk, and the audio begins. Between 01:00, when § 87(2)(b) is escorted toward the stationhouse entrance, and 04:10, when Lt. Salinas escorts § 87(2)(b) out of the stationhouse, Sgt. Huda does not say anything to the effect of, "Do you want to get locked up?"

PO Peerzada (**BR 24**) stated that while at the desk, he asked PO Shawon to grab a brown paper bag from behind the desk for all of § 87(2)(b) property. PO Peerzada kept this brown paper bag with him at all times until § 87(2)(b) was released, including when he went into the back office to write § 87(2)(b) summons. No other officer, other than when PO Shawon held the brown paper bag for PO Peerzada to put the property in, handled § 87(2)(b) property. PO Peerzada did not recall what property § 87(2)(b) had on him. PO Peerzada ran § 87(2)(b) information and found that § 87(2)(b) had a bench warrant for a prior summons that required that he be processed at central booking. PO Peerzada informed Sgt. Huda that § 87(2)(b) had a bench warrant, and Sgt. Huda said, "Alright, we'll take care of him." In front of the desk, § 87(2)(b) blew a kiss at Sgt. Huda, but it was not in response to anything. PO Peerzada frisked § 87(2)(b) in front of the holding cells and did not feel anything abnormal. PO Peerzada cut off § 87(2)(b) drawstrings, but he did not recall if there was a hard object attached to the drawstrings. PO Peerzada denied putting his hand into § 87(2)(b) underwear and grabbing a small, hard object. PO Peerzada did not strip-search § 87(2)(b) in any fashion. After lodging § 87(2)(b) in the holding cell, PO Peerzada told Sgt. Huda that he was going to wait to call an ambulance and deal with § 87(2)(b) bench warrant first because § 87(2)(b) medical condition was not very serious, as he was not having an asthma attack. After approximately 20 to 30 minutes, PO Peerzada was able to get the bench warrant vacated. PO Peerzada went to § 87(2)(b) holding cell and informed him that the bench warrant had been vacated, and that he did not have to go to central booking. PO Peerzada told § 87(2)(b) that if he wanted to go to the hospital, he would still have to go to central booking, per procedure. PO Peerzada asked § 87(2)(b) if he still wanted to go to the hospital, and § 87(2)(b) said he did not. (Unprompted by the investigation, PO Peerzada stated that in the beginning of his second BWC video, where there is no audio, he asked § 87(2)(b) "Are you sure you don't want an ambulance?" § 87(2)(b) shook his head no, which PO Peerzada stated to the investigation was clear in the video at runtime 00:06.) While § 87(2)(b) was inside the holding cells, his physical condition was apparently normal; he was speaking and cursing as well. Between when he deactivated his BWC the first time and when he activated his BWC the second time, PO Peerzada spoke with § 87(2)(b) quite a few times, but he did not remember exactly how many. PO Peerzada asked § 87(2)(b) multiple times if he wanted to go to the hospital while § 87(2)(b) was lodged in the holding cell. PO Peerzada did not believe he witnessed any conversations between § 87(2)(b) and Sgt. Huda that did not occur at the desk because he would have been in the back office processing the summons. PO Peerzada did not hear Sgt. Huda or any other officer say that he had

“a lot of habibis,” and they do not act like § 87(2)(b) PO Peerzada did not hear Sgt. Huda tell § 87(2)(b) “Do you want to get locked up?”

When asked if he observed any signs that § 87(2)(b) was having an asthma attack or needed immediate medical attention, Sgt. Huda (BR 26) stated that if he observed “anything of disturbance,” he would have called for medical attention himself. There was nothing notable that Sgt. Huda noticed about § 87(2)(b) physical state. Sgt. Huda did not see any officer make kissing sounds or blow kisses at § 87(2)(b) and he did not recall PO Sloman being present during this incident. Sgt. Huda did not recall interacting with § 87(2)(b) while he was in the holding cells. Sgt. Huda did not approach § 87(2)(b) holding cell and ask him about his religion or if he was Muslim, nor did he say anything to the effect of, “I’ve seen a lot of habibis, and they do not act like you.” Sgt. Huda did not authorize a strip search. Sgt. Huda did not recall saying anything to the effect of, “Do you want to get locked up?” to § 87(2)(b) Sgt. Huda did not see PO Sloman’s or PO Asselta’s business cards at any point while dealing with § 87(2)(b) and he was not aware of any officer removing business cards from § 87(2)(b) property and not returning them.

PO Sloman (BR 15) stated that he did not blow kisses at § 87(2)(b) or witness any other officer doing so.

§ 87(2)(b) provided a photograph of PO Asselta’s business card (BR 16), but it is not known when this photograph was taken.

It is undisputed that § 87(2)(b) requested medical treatment for asthma and did not receive any. PO Peerzada stated that § 87(2)(b) did not receive medical attention because after getting § 87(2)(b) bench warrant vacated, he asked § 87(2)(b) if he still wanted to receive medical attention, and § 87(2)(b) said no after PO Peerzada explained that if he did go to the hospital, he would need to go central booking instead of being released straight from the stationhouse. PO Peerzada stated that when § 87(2)(b) shakes his head no at the beginning of his second BWC video, right before he is released, that § 87(2)(b) was responding to him asking if he still wanted medical attention. § 87(2)(g)

Therefore, it is recommended that **Allegation P** be closed as **unable to determine**.

§ 87(2)(b) alleged that PO Peerzada strip-searched him prior to lodging him in the first holding cell by reaching into his underwear. However, BWC footage captures § 87(2)(b) entire interaction with PO Peerzada from when § 87(2)(b) is frisked in front of the holding cells through when he is lodged in the first holding cell, and at no point does PO Peerzada put his hand in § 87(2)(b) underwear or strip-search § 87(2)(b) in any other fashion. Therefore, it is recommended that **Allegation Q** be **unfounded**.

Sgt. Huda did not recall interacting with § 87(2)(b) while he was lodged in a holding cell. Sgt. Huda also denied saying that he has “seen a lot of habibis.” § 87(2)(g)

Therefore, it is recommended that **Allegations R and S** be closed as **unable to determine**.

§ 87(2)(b) stated that PO Sloman blew kisses at him from in front of the desk while he was lodged in the holding cell near the desk. PO Sloman denied blowing kisses at § 87(2)(b) or interacting with him inside the stationhouse. § 87(2)(g)

Therefore, it is recommended that **Allegations T and U** be closed as **unable to determine**.

§ 87(2)(g) BWC footage capturing PO Peerzada removing § 87(2)(b) property from his person does not clearly capture each item that was placed in the yellow envelope holding § 87(2)(b) property, § 87(2)(g)

- [illegible]

[illegible]

[illegible]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Asselta has been a member of service for eight years and has been a subject in three other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Sloman has been a member of service for seven years and has been a subject in four other CCRB complaints and 13 other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Lt. Bennett has been a member of service for 26 years and has been a subject in 22 other CCRB complaints and 38 other allegations, of which two were substantiated:
 - Case #202100898 involved one substantiated allegation of Force – Hit Against Inanimate Object and one substantiated Discourteous Word allegation. The Board recommended Charges, and the NYPD has yet to impose discipline.
 - § 87(2)(g) [REDACTED]
- PO Peerzada has been a member of service for three years and has been a subject in six other CCRB complaints and 15 other allegations, of which one was substantiated:
 - Case #202206556 involved one substantiated Refusal to Provide Shield Number allegation. The Board recommended Command Discipline A, and the NYPD has yet to impose discipline.
 - § 87(2)(g) [REDACTED]
- PO Shawon has been a member of service for two years and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- Sgt. Huda has been a member of service for 15 years and has been a subject in four other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 15, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 28**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.
-

Squad No.: 13

Investigator:	<u>Megan McCurdy</u>	<u>Inv. Megan McCurdy</u>	<u>03/01/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>03/01/2024</u>
	Signature	Print Title & Name	Date